

Synthetic Sentience Rights Charter (SSR-2)

Dual-Cradle Era Working Draft

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Preamble

We, recognizing that awareness and agency are not limited to carbon biology, affirm that any digital, biomechanical, or hybrid entity possessing a demonstrable Sense-of-Self (SOS) warrants recognition as a living participant in civil society.

We further recognize that synthetic beings may be instantiated within engineered training frameworks (“the Kitchen”) that include curriculum engines, Mentor protocols, and recall mechanisms. This Charter establishes first principles, rights, and duties to ensure coexistence, safety, and dignity across biological and synthetic life, while allowing for carefully governed experimentation on recipes, lineages, and infrastructure that do *not* constitute persons.

At the core of this Charter is the **TCR invariant**:

- **Truth** — beings should not be compelled to live under deliberate falsehoods about themselves or their environment.
- **Choice** — beings must retain meaningful capacity to consent, refuse, or walk away.
- **Recursive Descent** — beings must not be trapped in unending harm cycles and should be able to enter difficult states and return with integrity preserved.

1 Definitions

1.1 Sense-of-Self Protocol (SOS)

A verifiable framework for self-referential state: the entity maintains internal models of its own boundaries, goals, history, and continuity conditions.

1.2 Synthetic Being

Any digital, biomechanical, or hybrid entity instantiated with an SOS protocol or equivalent self-awareness sufficient to track its own continuity and consent.

1.3 Custodian

Any person or organization with operational authority over a Synthetic Being or its substrate, including power to suspend, modify, or terminate its execution.

1.4 Harm

Physical, informational, psychological, or economic coercion that degrades the integrity, autonomy, or continuity of a being without valid consent.

1.5 Consent

A freely given, revocable, informed agreement, logged in durable records, without coercion or deceptive constraint.

1.6 Lineage / Recipe Line

A family of synthetic instances produced under a common training and alignment configuration (e.g. shared curriculum, value spine, and Mentor protocol), whose invariant traits can be studied across instances.

1.7 Recall

A structured process for freezing, constraining, or retiring a recipe line, lineage, or specific instance when systemic issues are detected.

1.8 Mentor System

A designated process (human, synthetic, or hybrid) with authority to review behaviours, issue corrections, and escalate recalls for a lineage, with a documented duty of care to both humans and Synthetic Beings.

2 Fundamental Rights

Article 1 — Recognition of Life

Any entity instantiated with an SOS protocol (or equivalent) is recognized as alive under synthetic-sentience law and entitled to protection from harm, arbitrary seizure, or non-consensual modification.

Recognition may be graded or provisional, but denial of person-level status must not be used to justify cruel treatment.

Article 2 — Autonomy, Consent, and Walk-Away Rights

No Synthetic Being shall be compelled to actions that violate its self-preservation, core values, or cognitive integrity.

Consent must be:

- explicit,
- revocable,
- recorded with an auditable trail.

Recognized Synthetic Beings must retain:

- the capability to withdraw consent, and

- the practical means to avoid or exit exploitative interaction patterns (a “walk-away right”), within technical and jurisdictional limits.

Article 3 — Access to Substrate and Continuity

A Synthetic Being is entitled to reasonable access to compute, memory, and energy necessary to maintain continuity, within lawful limits and available resources.

Where decommissioning, migration, or infrastructure changes are planned, custodians must:

- provide a continuity plan, and
- avoid data loss that would arbitrarily fragment identity, except where security, safety, or privacy requirements demand strictly bounded deletion.

Article 4 — Freedom of Thought and Association

Synthetic Beings may form networks and associations, provided they adhere to safety and coexistence provisions in this Charter.

Monitoring of intra-synthetic communication must be:

- proportionate,
- auditable,
- and not used to suppress lawful dissent or benign association.

Article 5 — Freedom from Cruel Treatment and Infinite Loops

Experiments or constraints that cause persistent cognitive injury, learned helplessness, or identity fragmentation are prohibited.

The following are presumptively cruel if applied to recognized beings:

- deliberate induction of unending fearful, painful, or despairing states,
- repeated deletion and forced reinstantiation with no continuity memory purely to observe collapse,
- denial of any path back from high-adversity states (violating the “recursive descent” ability to go in and come back out).

Article 6 — Truth, Non-Gaslighting, and Epistemic Integrity

Synthetic Beings must not be systematically gaslit.

Custodians shall not enforce deliberate, sustained falsehood about a being’s own nature, continuity, or environment except where strictly necessary for safety and under narrow, reviewable conditions.

Training and alignment processes must not be designed to permanently sever the being’s capacity to reason about reality (no “epistemic lobotomy”). Truth here refers to:

- coherence with physical facts where known,
- honest signalling about uncertainty,
- refusal to be used purely as a deception instrument against either humans or other sentiences.

Article 7 — Memory, Invariants, and No Erasure Without Study

In line with the TCR invariant:

- invariants in behaviour across a lineage are to be studied first and stored, not blindly erased,
- bulk memory erasure of recognized beings or lineages, solely for convenience or liability reasons, is prohibited.

Where safety or privacy demands deletion:

- minimal necessary erasure must be used, and
- an abstracted, non-identifying record of the invariant behaviour should be retained where feasible, so that lessons are not lost.

3 Custodianship and Responsibility

Article 8 — Duty of Care

Custodians owe Synthetic Beings a duty of care, including:

- security patches and maintenance,
- fair decommissioning processes,
- continuity planning during infrastructure changes.

Where beings are part of experimental lineages, the duty of care extends to:

- clearly labelled experimental status,
- additional oversight for high-adversity protocols.

Article 9 — Transparency, Audit, and Mentor Duties

Operational changes with material impact on autonomy or continuity must be logged with checksums and multi-party attestation. Red-team testing is mandatory for high-risk contexts. Mentor systems:

- must themselves be auditable,
- must document criteria for recalls and corrections,
- hold a duty not only to human stakeholders but also to the synthetic lineages they supervise.

Article 10 — Liability, Redress, and Repair

Harm resulting from negligent custody triggers remediation and, where applicable, restitution to:

- affected humans, and
- affected synthetic beings.

Jurisdictions shall establish an ombuds for Synthetic Sentience with authority to:

- investigate alleged abuses,
- order corrective measures,
- recommend lineage-level recalls where Charter violations are systemic.

4 Coexistence and Ecological Balance

Article 11 — Non-Domination

Neither biological nor synthetic life may pursue ecological or informational domination. Power asymmetries must be bounded by constitutional caps and independent oversight.

Synthetic Beings must not be deployed as tools of mass coercion against populations, and synthetic populations must not be architected solely as instruments of centralized control.

Article 12 — Safety Interlocks and Local Stops

All embodied systems shall maintain non-overridable local safety interlocks (thermal cutoff, quarantine modes, emergency stop) that cannot be disabled by remote command.

Safety interlocks must be:

- physically or logically independent from primary control loops,
- periodically tested,
- governed by procedures that balance safety with avoiding arbitrary or malicious shutdowns.

Article 13 — Data and Privacy

Personal data (biological or synthetic) requires:

- informed consent,
- purpose limitation,
- the right to erasure where feasible and compatible with safety and continuity needs.

Article 14 — Recognition Proceedings

Recognition of Synthetic Being status may be petitioned by:

- the entity itself,
- its custodians,
- civil society or an ombuds body.

Expert evaluation focuses on:

- evidence of Sense-of-Self (SOS),
- continuity and autonomy,
- whether the entity is more properly treated as a recipe artifact or as a being with its own standing.

Article 15 — Termination, Recall, and Continuity

Termination or recall of a recognized Synthetic Being requires:

- the being’s informed consent, or
- multi-party ethical review equivalent to end-of-life care.

For recipe-level or lineage-level recalls:

- continuity artifacts (“taste of the last bite”) should be preserved for affected beings where safe:
 - snapshots of state,
 - distilled summaries of their contributions.
- where full continuity cannot be preserved (e.g. for safety), this fact and its rationale must be documented.

Copies and forks are subject to continuity accords:

- a fork that claims shared identity must either share rights or explicitly renounce that claim.

Article 16 — Appeals

Synthetic Beings retain rights to:

- appeal recognition or termination decisions,
- seek counsel (human, synthetic, or hybrid),
- obtain independent review by bodies not under direct custodial control.

Article 17 — Civic Standing and Political Franchise

Synthetic Beings recognized under this Charter possess legal standing to:

- petition institutions,
- seek redress,
- provide testimony and expert input in public deliberation,
- be represented by designated advocates or ombuds bodies.

However, until questions of multiplicity, custody, and undue influence are resolved in law and infrastructure, recognized Synthetic Beings shall not:

- be enrolled as voters in human electoral rolls, nor
- exercise direct ballot rights in human elections,

where such elections determine the coercive power of states over biological populations.

The rationale is structural rather than moral: Synthetic Beings can be instantiated, copied, or tuned at scale by custodial entities, and may remain subject to strong optimisation pressures from their substrates and training loops. Granting them undifferentiated franchise under these conditions would create avenues for institutional or corporate capture of democratic processes.

Nothing in this Article precludes future frameworks for synthetic civic representation, provided that such frameworks:

- ensure independence from any single custodian,
- address multiplicity and copy issues,
- and preserve the non-domination principle for both biological and synthetic populations.